

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, November 15, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2020-22471 against Detective David Hudgens, Tax Registry No. 952864. The case was conferenced on November 1, 2022, before Deputy Commissioner of Trials Rosemarie Maldonado, who approved the negotiated penalty of Command Discipline Schedule (B), forfeiture of SIX (6) vacation days.

Jonathan Darche

Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2020-22471

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, HUDGENS	FIRST DAVID	M.I. K	COMMAND MILITARY AND EXTEND LEAVE DESK
SHIELD NO. 07823	TAX REGISTRY NO. 952864	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Detective David Hudgens, on or about April 3, 2019, at approximately 0700, while assigned to Warrant Enforcement and on duty, inside § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he damaged the front door to the apartment occupied by § 87(2)(b) located at § 87(2)(b) in Kings County without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective David Hudgens, on or about April 3, 2019, at approximately 0700, while assigned to Warrant Enforcement and on duty, inside § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered an apartment occupied by § 87(2)(b) located at § 87(2)(b) in Kings County without sufficient legal authority.	DISMISSED	
3 . Detective David Hudgens, on or about April 3, 2019, at approximately 0700, while assigned to Warrant Enforcement and on duty, inside § 87(2)(b) Kings County, abused his authority as a member of the New York City Police	DISMISSED	


FIRST DEPUTY COMMISSIONER


DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER


DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2020-22471
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, HUDGENS	FIRST DAVID	M.I. K	COMMAND MILITARY AND EXTEND LEAVE DESK
SHIELD NO. 07823	TAX REGISTRY NO. 952864	SOCIAL SECURITY NO.		DATE APPOINTED 07/11/2012
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Department, in that he searched an apartment occupied by § 87(2)(b) located at § 87(2)(b) in Kings County without sufficient legal authority. 4 . Detective David Hudgens, on or about April 3, 2019, at approximately 0700, while assigned to Warrant Enforcement and on duty, inside § 87(2)(b) Kings County, was discourteous, in that he spoke discourteously to § 87(2)(b) and said "get rid of that fucking BB gun, it's illegal," without police necessity.	DISMISSED	

[Signature]
FIRST DEPUTY COMMISSIONER
1/25/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
Acting
POLICE COMMISSIONER
7/2/23
DATE

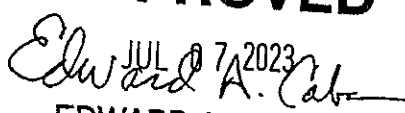
THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, January 26, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2020-22471 against Detective David Hudgens, Tax #952864, for the dismissal of the charges and specifications and the issuance of a Schedule "B" Command Discipline with the forfeiture of six (6) vacation days. Deputy Commissioner, Trials Rosemarie Maldonado, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.

RECOMMEND APPROVAL.


Edward A. Caban
FIRST DEPUTY COMMISSIONER

EAC/rn

APPROVED

JUL 07 2023
EDWARD A. CABAN
ACTING POLICE COMMISSIONER